

May 30, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11606
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-DOT specification steel drums and certain UN1A1 and UN1A2 steel drums without the marking of the symbol of the manufacturer and the initials "USA" to be shipped without leakproofness testing. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
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4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.28(b)(2) 173.203 in that non-DOT specification packagings or specification packagings with incomplete marking are authorized, and the marking requirements in §§ 172.301(c) and 178.503(a)(7) and (a)(8).
5. BASIS: This special permit is based on the application of Safety-Kleen Systems, Inc. dated December 28, 2011, and additional information dated May 9, 2012 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Corrosive liquids, basic organic, n.o.s.	8	UN3267	III
Flammable liquids, n.o.s.	3	UN1993	III
Waste combustible liquids, n.o.s.	Combustible liquid	NA1993	III
Waste petroleum distillates, n.o.s. or Petroleum products, n.o.s.	3	UN1268	III
Tetrachloroethylene	6.1	UN1897	III
Hazardous waste, liquid, n.o.s.	9	NA3082	III
Toxic liquids, organic, n.o.s. (tetrachloroethylene)	6.1	UN2810	III

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed must conform to the following:

(1) Non-DOT specification metal drums having capacities of 16 or 30 gallons meeting the applicable general packaging requirements in §§ 173.24 and 173.24a. The 16-gallon capacity drums are 22-gauge steel body with 20-gauge steel bottom and top and may have an epoxy-phenolic lining. The 30-gallon capacity drums are 20-gauge steel body, bottom and top. No new construction is authorized for either drum type.

(2) Approximately 15,000 UN1A1 and UN1A2 steel drums without the marking of the manufacturer's symbol and the initials "USA" specified in § 178.503(a) (7) and (a) (8). No new construction is authorized.

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b. TESTING -Each drum must be capable of withstanding, without rupture or leakage, the vibration test procedure specified in § 178.608.

c. OPERATIONAL CONTROLS -

(1) Safety-Kleen Corp. may continue to use their non-DOT specification drums in their present inventory until they are no longer serviceable.

(2) Drums may be reused for transportation without being subjected to the leakproofness test of § 173.28(b)(2), subject to the following:

(i) The packagings may only be transported aboard Safety-Kleen's vehicles (private carriage) or by third-party carriers complying with Safety-Kleen's carrier compliance and monitoring program policies, on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA). Each vehicle must have a method for containing the contents of the largest drum on the vehicle (i.e. salvage drum).

(ii) Safety-Kleen must have written procedures to assure containment of any leakage and the vehicle operators must be trained in the use of containment equipment.

(iii) Stacking of the drums is only authorized if the packages are stretch-wrapped and secured to wooden pallets. The second tier packages must be placed on a separate pallet. All packages must be secured, blocked, and braced to prevent any movement or shifting under normal conditions of transportation.

(iv) Inspection/rejection criteria: Each drum must be inspected for leakage before refilling and shipment in accordance with written procedures. Any sign of leakage requires that the drum be permanently taken out of service.

(v) A current copy of this special permit must be maintained and made available for examination at each location where refilling of drums which have not been leakproofness tested takes place.

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8. SPECIAL PROVISIONS: The marking requirement specified in § 172.301(c) is waived for packagings transported in conformance with this special permit.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

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12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: GREY-GREEN:dl